

Court No. - 32

Case :- WRIT - C No. - 40671 of 2018

Petitioner :- Lala Ram

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Ram Sajiwan Prajapati

**Counsel for Respondent :- C.S.C., Baleshwar
Chaturvedi**

Hon'ble Shashi Kant Gupta,J.

Hon'ble Mrs. Manju Rani Chauhan,J.

This writ petition has been filed, inter alia, for the following reliefs:

"(I) Issue a writ of mandamus directing to the respondents to waive-out to entire amount of inflated Bill after deducting the amount of Rs. One Lac as per OTS Scheme of 2017 launched by State Government of U.P.

(II) Issue a writ, order or direction in the nature of mandamus directing the respondent nos. 2 and 3 to re-connect the electricity in the home of the petitioner.

(III) Issue a writ, order or direction in the nature of mandamus directing to issue the P.D. Certificate in favour of the petitioner."

Heard learned counsel for the petitioner, Sri Baleshwar Chaturvedi, learned counsel for the Electricity Department and perused the record.

The petitioner is raising dispute with regard to the correctness of the bill raised against him.

It is open to the petitioner to take recourse to the remedy provided to him under Clause 6.5 of the

U.P. Electricity Supply code, 2005.

We are not inclined to entertain this writ petition for reasons that there is availability of statutory remedy.

In case, the petitioner approaches the appropriate authority for redressal of his grievance within 10 days from today, his application may be considered and decided by the said authority in accordance with law within 30 days from the date of receipt of a certified copy of this order by a speaking order after giving opportunity of hearing to the petitioner.

For a period of 40 days or till the matter is decided by the authority concerned, whichever is earlier, no coercive action shall be taken against the petitioner.

With the aforesaid observation, the writ petition is finally disposed of.

Order Date :- 11.12.2018

Arun